



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 02 - 26 - 2026
BY: *MA. JULINA B. JUTILO*
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 29TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 16, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Tanie A. Quillano		SB Member
------------------------	-------	-----------

ORDINANCE NO. 26
Series of 2026

**“AN ORDINANCE REQUIRING ALL QUALIFIED STORES, FACILITIES AND SIMILAR ESTABLISHMENTS
WITHIN THE TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF CARMEN, PROVINCE OF
SURIGAO DEL SUR TO OBTAIN PHILGEPS REGISTRATION PROVIDING GUIDELINES AND FOR OTHER
PURPOSES”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, PHILGEPS is mandated by Republic Act No. 9184 otherwise known as the Government Procurement Reform Act and its implementing rules. GPPB resolutions further specify that suppliers of food and non-food and other by products must register to participate in Government Procurement Activities and Local Ordinances align with these national requirements to ensure uniform implementation;

WHEREAS, the platform centralizes procurement information making bid opportunities, timelines and award results publicly accessible;

WHEREAS, it is the good intention of the Local Government Unit that all qualified stores, facilities and similar establishments has the priority to participate the bidding process and has the opportunity to become a local supplier of much needed commodities both in times of emergencies and during peace time;

WHEREAS, the registration allows local businesses to access government procurement projects and the likes within the locality and beyond which can be a source of revenue and help drive growth;

WHEREAS, it also enhances their credibility when dealing with both the government and private sectors;

WHEREAS, by encouraging local businesses to register, LGU's can promote their participation in public procurement, helping to boost the local economy, creates job and strengthen the business ecosystem in the area;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as the PHILGEPS REGISTRATION ORDINANCE of the Municipality of Carmen, Surigao del Sur.

Section 2. DECLARATION OF POLICY- It is hereby a declared a policy of the Municipality of Carmen, Surigao del Sur to promote transparency, accountability, equity, efficiency and economy in its procurement processes aligning with the principles of Republic Act No. 9184 also known as the Government Procurement Reform Act. To ensure fair and open participation in Government procurement. This Ordinance mandates all stores, business establishments and facilities to obtain a PHILGEPS Registration operating within the municipality.

Section 3. SCOPE- This Ordinance shall apply to all stores, facilities, business establishments and the likes operating within the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur that are mandated to engage and participate in any transaction with the Municipal Government involving the supply of goods, services, delivery and any infrastructure projects.

Section 4. DEFINITION OF TERMS- For purposes of this Ordinance, the following terms shall be defined as follows:

- 1) **PHILGEPS-** refers to the Government Electronic Procurement System, the single, centralized portal for all information regarding government procurement.
- 2) **QUALIFIED STORES, FACILITIES, BUSINESS ESTABLISHMENTS-** Any business entity whether a sole proprietorship, partnership, corporation or cooperative operating within the Municipality of Carmen, Surigao del Sur and possessing the necessary permits and licenses to engage in trade or business.
 - Any stores and the likes which are not only qualified but agreed upon by the needs to supply to the LGU through a signed Memorandum of Agreement (MOA) between parties and payment shall be done within a maximum of seven (7) calendar days upon release of such goods. Provided, that they follow the procurement process.
- 3) **PROCUREMENT-** the acquisition of goods, services or infrastructure projects by the Municipal Government as defined under RA 9184 and its Implementing Rules and Regulations.

Section 5. REQUIREMENTS FOR PHILGEPS REGISTRATION- All qualified stores, facilities and business establishments intending to participate in any procurement activity with the Municipal

Government of Carmen, Surigao del Sur are required to register with PHILGEPS Certificate of Registration.

Section 6. GUIDELINES FOR REGISTRATION-

- 1) Business shall be registered online via the PHILGEPS website if possible.
- 2) Businesses may choose between Red and Platinum Membership depending on their needs and the requirements of specific procurement activities.
- 3) The registration process shall follow the guidelines provided on the PHILGEPS WEBSITE.
- 4) The Municipal Government shall recognize the PHILGEPS Certificate of Registration as a requirement for eligibility in all procurement activities.

Section 7. IMPLEMENTING BODY- The Bids and Awards Committee (BAC) of the Municipality of Carmen, Surigao del Sur shall be responsible for the implementation and enforcement in all procurement activities.

Section 8. PENALTIES- Any qualified store, facility or similar establishment that fails to comply with the provisions of this Ordinance shall be subject to the following penalties:

FIRST OFFENSE	- Stern Warning
SECOND OFFENSE	- a fine of One Thousand Pesos (Php1,000.00)
THIRD OFFENSE	- a fine of Two Thousand Five Hundred Pesos (Php2,500.00)

Section 9. SEPARABILITY CLAUSE- If, any section or provision of this Ordinance is declared invalid or unconstitutional, the other sections or provisions not affected thereby shall remain in full force and effect.

Section 10. REPEALING CLAUSE- All Ordinances, Resolutions, Executive Orders or parts thereof inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

Section 11. EFFECTIVITY CLAUSE- This Ordinance shall take effect fifteen (15) days after its posting in at least three (3) conspicuous places in the Municipality of Carmen, Surigao del Sur.

ENACTED this 16th day of February, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
02/16/2026